

**BEFORE THE
GOVERNING BOARD OF THE
MOUNTAIN VIEW SCHOOL DISTRICT**

**In the Matter of the District Statement of Certificated
Reduction in Force against:**

**CERTIFICATED TEACHERS OF THE MOUNTAIN VIEW SCHOOL
DISTRICT,**

Respondents.

OAH No. 2025030712

PROPOSED DECISION

Cindy F. Forman, Administrative Law Judge, Office of Administrative Hearings (OAH), State of California, heard this matter in El Monte, California, on April 8, 2025.

Margaret A. Chidester and Alexandra T. Reynoso, Attorneys at Law, represented the Mountain View School District (District).

Carlos R. Perez, Esq., represented respondents Pedro Flores, Nancy Iniguez, Naomi Nagera, Jessica Nunez, Anthony Ramirez, and Miriam Varela (collectively, respondents). All respondents were present at the hearing.

The Administrative Law Judge received testimony and documentary evidence. The record closed and the matter was submitted for decision on April 8, 2025.

SUMMARY OF PROPOSED DECISION

The District Governing Board (Board) determined to reduce or discontinue particular kinds of services provided by teachers and other certificated employees for budgetary reasons. The decision was not related to the competency and dedication of the individuals whose services the District proposed to reduce or eliminate.

The District carried out the Board's decision by using a selection process involving review of credentials and seniority, "bumping," and breaking ties between employees with the same first dates of paid service. The selection process was in accordance with the requirements of the Education Code.

FACTUAL FINDINGS

Jurisdictional Matters

1. Roberto López-Mena filed the District Statement of Certificated Reduction in Force (Accusation) in his official capacity as District Assistant Superintendent, Human Resources.
2. Respondents are probationary or permanent certificated employees of the District.
3. On March 6, 2025, the Board adopted Resolution 25-031 titled "Resolution of the Governing Board of the Mountain View School District Regarding Reduction or Discontinuance of Particular Kinds of Certificated Service" (Resolution), which provides for the reduction or discontinuation of certain services at the close of the 2024-2025 school year. The Resolution also established exemption and tie-breaker

criteria for determining the relative seniority of certificated employees who first rendered paid service on the same date.

4. On or before March 15, 2025, the District provided 25 certificated employees with notice pursuant to Education Code sections 44949 and 44955 that their services would not be required for the 2025-2026 school year. Each notice stated the reasons for the discontinuation of services. Thereafter, 24 certificated employees timely requested a hearing to determine whether cause existed for not reemploying them for the 2025-2026 school year.

5. On March 21, 2025, the District served the Accusation, a Notice of Hearing, and other required documents on the 24 certificated employees who requested a hearing. Per the Resolution, those requesting a hearing were not required to file a Notice of Participation as provided by Government Code section 11506 and Education Code section 44949, subdivision (c)(1).

6. All jurisdiction requirements were met.

District Layoffs

7. The Resolution provided the District would reduce or discontinue the following particular kinds of services affecting the employment of 28 full-time positions: (1) one Full-Time Equivalent (F.T.E.) Principal- Alternative Education position; (2) one F.T.E. Director II – Pupil Personnel Services position; (3) one F.T.E. Director II – Family Engagement, Extended Learning, and Migrant Education position; (4) seven F.T.E. Learning Recovery Intervention 2-6 positions; (5) seven F.T.E. Intervention Teacher 3-6 positions; (6) four F.T.E. Elementary Physical Education Teacher positions; (7) two F.T.E. School Counselor positions; (8) three F.T.E. TOSA – Curriculum and

Instruction positions; (9) one F.T.E. TOSA – Family Engagement position; and (10) one F.T.E. TOSA – English Language Development position.

8. The Board took action to reduce or discontinue the services set forth in Factual Finding No. 7 because of the District's loss of emergency COVID funding. Assistant Superintendent López-Mena testified regarding the District's decision to reduce particular kinds of services. The District consists of eight schools and 4,400 students. Assistant Superintendent López-Mena explained the recent "sunsetting" of COVID funding will cause the District to incur significant deficits over the next three years. Because personnel costs make up 82 percent of the District's budget, the District will not be able to meaningfully reduce its expenditures unless certain services are either discontinued or reduced.

9. The Board adopted "skipping" criteria to retain certain employees for the 2025-2026 school year regardless of seniority. Specifically, the Resolution provides certain certificated employees are exempt from the order of layoff "by virtue of their credentials, competence, assignment, experience, or certification" that others do not possess. Exhibit "A" of the Resolution specifies the categories of certificated employees the Board seeks to retain in the 2025-2026 school year, regardless of seniority. These categories are:

1. Certificated personnel who possess administrative credentials, who are currently assigned to administrative positions, and who will be assigned to administrative positions for the 2025-2026 school year.
2. Certificated personnel who possess a credential authorizing service in the following special education

job descriptions: Resource Specialist Teacher, Special Education Teacher - RIS, Special Education Teacher - Self Contained Class, Speech/Language Specialist, School Psychologist, Program Specialist, and Adaptive Physical Education Teacher who are presently assigned within the scope of that credential, and who will be assigned within the scope of that credential for the 2025-2026 school year.

3. Certificated personnel who possess a single subject credential authorizing service in mathematics or science, who are presently assigned within the scope of that credential, and who will be assigned within the scope of that credential for the 2025-2026 school year.
4. Certificated personnel with specific and recent training in community site leadership responsibilities who have at least 6 months of service in [District] community school leadership, who are presently assigned to such a position, and who will be assigned as community site lead for school year 2025-2026.

Except as discussed in Factual Findings 16 through 18 below, respondents did not challenge the District's skipping criteria, and none of the respondents indicated they possessed the qualifications described in Attachment A.

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10. The Board also adopted tiebreaker criteria for determining the relative seniority of employees with the same first date of paid service. Exhibit "B" of the Resolution provides the order of termination of employees with the same first date of paid service shall be determined by reference to certain tiebreaker criteria and to points assigned to each category of tiebreaker criteria. The Resolution further established a lottery process to be implemented if the tiebreaking criteria did not break all the ties between employees with the same first date of paid service. The tiebreaking criteria are reasonable as they relate to the skills and qualifications of certificated and probationary employees. Respondents did not challenge the tie-breaking criteria, and the District properly applied the criteria.

11. The District maintains a seniority list containing employees' seniority dates (first date of paid service with the District), current assignments and locations, whether an employee is "exempt" from the layoff, the employee's status as permanent, probationary, temporary, etc., and credentials. Assistant Superintendent López-Mena testified the District's seniority list has been updated multiple times, with its most recent update on April 4, 2025. Respondents did not challenge the accuracy of the seniority list.

12. The District used the seniority list to develop a proposed layoff and "bumping" list of the least senior employees assigned to the services sought to be reduced or discontinued according to the Resolution. Based on the information from the seniority lists, the District determined whether senior employees designated for layoff possessed credentials in other areas that would entitle them to "bump" junior employees holding positions that were not included in the particular kinds of services designated for reduction in the layoff. The District also used the seniority list to apply the tiebreaking criteria in Exhibit "B" of the Resolution.

13. The District identified vacancies in the 2025-2026 school year due to Positively Assured Attrition, including retirements, deaths, and resignations. In consideration of such attrition, the District concluded the number of certificated employees required to be terminated for the 2025-2025 school year would be reduced by three F.T.E. positions: specifically, two F.T.E. positions for Elementary Physical Education Teachers and one F.T.E. positions for a School Counselor.

14. On or before April 8, 2025, the District rescinded its notices of non-reemployment issued to 19 of its certificated employees. As a result of the rescinded layoff notices, six District certificated employees remained subject to the Resolution and were represented at the layoff hearing. They are respondents Pedro Flores, Nancy Iniguez, Naomi Najera, Jessica Nunez, Anthony Ramirez, and Miriam Varela.

Respondents' Challenge to Retention of Temporary Employee

15. In respondents' counsel's closing argument, he challenged the retention of Alexander Rectra (Employee No. 309) for the 2025-2026 school year, who, according to the District's Seniority List, is a Community School Site Lead hired on August 9, 2024, and a temporary employee who is "exempt" under category 4 of Attachment A to the Resolution. Mr. Rectra is the only temporary employee not displaced or "bumped" by senior employees, and he neither received a layoff notice nor was present at the hearing. Respondents' counsel contended the District should release Mr. Rectra from service because his temporary status and his position do not justify exemption from the layoff criteria. Respondents' counsel further contended that by failing to release Mr. Rectra, the District deprived respondents of the opportunity to fill his position.

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16. Respondents' counsel's contentions are unpersuasive. Counsel failed to cite any legal authority requiring the release of Mr. Rectra solely because of his status as a temporary employee and in the absence of any evidence that he can be displaced by a senior employee. None of the respondents established they possessed the requisite competency to displace or "bump" Mr. Rectra. (*Moreland Teachers Association v. Kurze* (1980) 109 Cal.App.3d 648, 655 [requiring competency to be demonstrated by the senior employee].) The exemption criteria state that a Community Site Coordinator must have specific and recent training in community site leadership responsibilities and have at least six months of service in District leadership. Assistant Superintendent López-Mena testified that a Community Site Coordinator also has at least five years' teaching experience, a master's degree in education, experience in working with a team and team building, and a background in communication and organizational skills. None of the respondents asserted or demonstrated they possess the necessary community site leadership experience or skills required of a Community Site Coordinator.

17. In addition, respondents' counsel offered no legitimate basis to challenge the exemption category for Community Site Leads created by the District. Assistant Superintendent López-Mena credibly explained Community Site Leads are uniquely trained and have a distinct role in a new District initiative involving community partners and resources to address the "whole child." Community Site Leads do not work in a classroom or have regular teaching responsibilities. Nor do they work regular classroom hours.

18. The District demonstrated a specific need for personnel to provide community liaison services. The District also demonstrated Mr. Rectra has the special training and experience necessary to provide those services, which others with more

seniority do not possess. The District's retention of Mr. Rectra has no adverse impact on respondents' employment or reemployment rights. Thus, the District's decision to exempt Mr. Rectra from layoff despite his temporary status was not arbitrary, capricious, or an improper exercise of discretion.

LEGAL CONCLUSIONS

1. Jurisdiction for this proceeding exists under Education Code sections 44949 and 44955. All notices and other requirements of those sections have been provided as required.

2. The services identified in the Resolution are particular kinds of services that could be reduced or discontinued under Education Code section 44955. The Governing Board's decision to reduce or discontinue the identified services was neither arbitrary nor capricious and was a proper exercise of its discretion. The reduction or discontinuation of the particular kinds of services stated in the Resolution is related to the welfare of the District's schools and pupils within the meaning of Education Code section 44949.

3. A school district may reduce services within the meaning of section 44955, subdivision (b), "either by determining that a certain type of service to students shall not, thereafter, be performed at all by anyone, or it may 'reduce services' by determining that proffered services shall be reduced in extent because fewer employees are made available to deal with the pupils involved." (*Rutherford v. Board of Trustees* (1976) 64 Cal.App.3d 167, 178–179.)

4. Under Education Code section 44955, subdivision (d)(1), junior teachers may be given retention priority over senior teachers if the junior teachers possess

superior skills or capabilities that their more senior counterparts lack. (*Santa Clara Federation of Teachers, Local 2393 v. Governing Board* (1981) 116 Cal.App.3d 831, 842–843.) Respondents did not dispute three of the District’s four skipping criteria. The District’s fourth exemption category pertaining to Community Site Leads is reasonable and consistent with the District’s and its pupils’ needs.

5. A senior teacher whose position is discontinued has the right to transfer to a continuing position that he or she is certificated and competent to fill. In doing so, the senior employee may displace or “bump” a junior employee who is filling that position. (*Lacy v. Richmond Unified Sch. Dist.* (1975) 13 Cal.3d 469.) A school district has discretion to determine whether an employee is certified and competent to be reassigned and, as a result, to displace a junior employee, in accordance with Education Code section 44955, subdivisions (c) and (d). (*Duax v. Kern Community College Dist.* (1987) 196 Cal.App.3d 555, 565.) The criteria used to determine a teacher’s competence must be reasonable. (*Id.* at p. 566.) Competency criteria that consider the skills and qualifications required of the certificated employee are reasonable. (*Id.* at p. 565-566.) The competency criteria adopted in the Resolution are reasonable, and the District’s bumping criteria are not in dispute.

6. Except as provided by statute, the District retained no certificated employees with less seniority to provide a service that any of the respondents are certificated and competent to render. As between employees who first rendered paid service to the District on the same date, the District’s order of termination was based solely on the needs of the District and its students.

7. Cause therefore exists to reduce the number of certificated employees of the District due to the reduction and discontinuation of particular kinds of services.

ORDER

1. The District Statement of Certificated Reduction in Force is sustained.
2. Notice may be given to employees occupying up to 25 full-time equivalent certificated positions that their services will not be required for the 2025-2026 school year because of the reduction and discontinuance of particular kinds of services. Notice shall be given in inverse order of seniority. Such notice may be given to respondents Pedro Flores, Nancy Iniguez, Naomi Najera, Jessica Nunez, Anthony Ramirez, and Miriam Varela.

DATE: 05/21/2025

A handwritten signature in black ink, appearing to read 'Cindy F. Forman', with a stylized, flowing script.

CINDY F. FORMAN

Administrative Law Judge

Office of Administrative Hearings